

[1 EDW. 8. &
1 GEO. 6.]

*Liverpool Exchange
Act, 1937.*

[Ch. xiv.]



CHAPTER xiv.

An Act to authorise the sale of the undertaking of the Liverpool Exchange Company Limited to confer further powers upon that company and the purchaser of the undertaking and for other purposes. A.D. 1937.
[25th March 1937.]

WHEREAS by the Liverpool Exchange Act 1859 the Liverpool Exchange Company (hereinafter referred to as "the said company") were incorporated with power to maintain alter improve add to or otherwise enlarge the range of buildings in the city of Liverpool called the Liverpool Exchange and the other buildings which then were or might become vested in the said company and from time to time to maintain and improve the area in front of the Liverpool Exchange and to erect and provide additional buildings for purposes of trade and commerce and to purchase and hold lands and other property for the purposes of their undertaking : 22 & 23 Vict.
c. xxviii.

And whereas by the Liverpool Exchange Act 1864 and the Liverpool Exchange Act 1930 further powers were conferred on and further provisions were enacted with respect to the said company : 27 & 28 Vict.
c. cxlv.
20 & 21
Geo. 5.
c. lxiv.

And whereas by virtue of the recited Acts the said company are under obligation to provide and maintain a room in the buildings for the time being standing on the site of the Liverpool Exchange to be called the Exchange news room :

A.D. 1937.
—

And whereas by virtue of the recited Acts the said company are under certain restrictions as to building over the parts of their property known as the Arcades and are unable to build over certain passageways :

19 & 20
Geo. 5. c. 23.

And whereas under and by virtue of Part IX of the Companies Act 1929 the said company has been registered as a company limited by shares under the name of the Liverpool Exchange Company Limited and as such is hereinafter referred to as "the Company" :

And whereas it is desirable that the buildings standing on the site of the Liverpool Exchange should be demolished and new buildings erected on the said site :

And whereas with the objects aforesaid it is expedient to authorise the Company to sell their undertaking and to free the Company and any purchaser from certain of the restrictions imposed upon the Company under and by virtue of the recited Acts :

And whereas it is expedient that such other provisions should be made as are in this Act contained :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

Short and
collective
titles.

1.—(1) This Act may be cited as the Liverpool Exchange Act 1937.

(2) The Liverpool Exchange Acts 1859 to 1930 and this Act may be cited together as the Liverpool Exchange Acts 1859 to 1937.

Inter-
pretation.

2. In this Act unless the context otherwise requires—

"the Company" means the Liverpool Exchange Company Limited;

"the Act of 1859" means the Liverpool Exchange Act 1859;

[1 EDW. 8. &
1 GEO. 6.]

*Liverpool Exchange
Act, 1937.*

[Ch. xiv.]

“ the Act of 1864 ” means the Liverpool Exchange Act 1864; A.D. 1937.

“ the Act of 1930 ” means the Liverpool Exchange Act 1930;

“ the recited Acts ” means the Act of 1859 the Act of 1864 and the Act of 1930;

“ the undertaking ” means the Liverpool Exchange and the buildings thereon the Exchange Flags the Arcades and the passageways and all other lands and buildings belonging to the Company;

“ the Arcades ” means the arcades constructed in accordance with the provisions of sections 9 to 13 of the Act of 1864;

“ the passageway ” means the passageway leading from Chapel Street to the north westerly corner of the Exchange Flags;

“ purchaser of the undertaking ” includes such purchaser and any person deriving title through him to the undertaking of the Company;

“ the signed plan ” means the plan four copies of which have been signed by the Right Honourable Robert Croft Bourne the chairman of the committee of the House of Commons to whom the Bill for this Act was referred and which have been deposited respectively in the Parliament Office of the House of Lords in the Committee and Private Bill Office of the House of Commons with the town clerk of the city of Liverpool and with the Company.

3. The Company may sell the undertaking to such person upon such terms and subject to such conditions as the Company may determine. Sale of under-taking.

4. Notwithstanding anything contained in the recited Acts the Company and any purchaser of the undertaking may demolish all or any of the buildings standing on the site of the Liverpool Exchange and erect new buildings thereon and may stop up and erect buildings on the Arcades and the passageway. Repeal of restrictions.

A.D. 1937.

Maintenance of
Exchange
Flags and
passages.

5. The Company and the purchaser of the undertaking shall—

- (1) maintain the area known as the Exchange Flags which is coloured red on the signed plan and subject to the byelaws for the time being in force such area shall be appropriated to the public use of the merchants traders and inhabitants of the city of Liverpool and of persons resorting thereto for the purpose of trade and commerce in the manner of an exchange;
- (2) maintain as public ways and keep in repair and pave the passages coloured blue on the signed plan :

Provided that—

(a) the Company and the purchaser of the undertaking shall be entitled to erect and maintain temporary buildings upon the Exchange Flags for the accommodation of the tenants of the Exchange buildings during the rebuilding thereof; and

(b) the Company and the purchaser of the undertaking shall be at liberty to build over and under the passages coloured blue on the signed plan but not so as to interfere with the reasonable use thereof by the public.

Provision
of news
room.

6. The Company and any purchaser of the undertaking shall appropriate and set apart a room in the buildings for the time being standing on the site of the Liverpool Exchange for use as a public room for commercial purposes to be known as the "Exchange news room" of dimensions not less than those specified in section 34 of the Act of 1930 and may charge for admission thereto and the unrepealed provisions of the recited Acts shall apply to the Exchange news room so appropriated and set apart.

Application
of recited
Acts.

7. As from the date when the Company shall have completed the sale of the undertaking the unrepealed provisions of the recited Acts except those referred to in Part II of the schedule to this Act which shall

[1 EDW. 8. &
1 GEO. 6.]

Liverpool Exchange
Act, 1937.

[Ch. xiv.]

continue to apply to the Company shall apply to the purchaser of the undertaking as if he were named therein instead of the Company. A.D. 1937.
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8. The provisions of the recited Acts referred to in Part I of the schedule to this Act are hereby repealed on the passing of this Act and the provisions referred to in Part II of that schedule are hereby repealed on the dissolution of the Company. Repeal.

9. The following provisions for the protection and benefit of the lord mayor aldermen and citizens of the city of Liverpool (in this section referred to as "the corporation") shall have effect:— For protec-
tion of
Liverpool
Corpora-
tion.

(1) Nothing contained in this Act shall prejudice or affect any right vested in the corporation or their lessees—

(a) to erect a building or buildings upon any land for the time being belonging to them or their lessees in the vicinity opposite to and not exceeding the height of any building erected by the Company or any purchaser of the undertaking on the site of the Liverpool Exchange; or

(b) to obtain compensation from the Company or any purchaser of the undertaking in respect of any interference caused by them with any easement of light and air vested in the corporation or their lessees :

(2) Section LXXVII (Saving rights of municipal corporation) of the Act of 1859 and section 27 (Saving rights of Company and corporation) of the Act of 1864 shall have effect as if they were re-enacted in this Act.

10.—(1) The Company shall deliver to the Registrar of Companies a printed copy of this Act and he shall retain and register it. If such a copy is not so delivered within three months from the passing of this Act the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly Copy of Act
to be
registered.

A.D. 1937. — and wilfully authorises such default shall incur a like penalty.

(2) Every penalty under this section shall be recoverable summarily.

(3) There shall be paid to the registrar by the Company on such copy being registered the fee of five shillings.

Costs of Act.

11. The costs charges and expenses preliminary to and of and incident to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

[1 EDW. 8. &
1 GEO. 6.]

*Liverpool Exchange
Act, 1937.*

[Ch. xiv.]

The SCHEDULE referred to in the
foregoing Act.

A.D. 1937.

PART I.

PROVISIONS REPEALED ON THE PASSING OF THIS ACT.

The Act of 1859—

Section	I	(Recited Acts repealed);
„	XL	(Power to take lands);
„	XLI	(Power of compulsory purchases limited);
„	XLII	(Limiting time for purchase of certain property);
„	XLIII	(Company not to appropriate any lands for Exchange or news room till certain property is purchased);
„	XLIV	(Payment of purchase money to company of proprietors);
„	XLV	(Power to purchase additional land for purposes of Act);
„	XLVIII	(As to Exchange Street West);
„	XLIX	(As to Exchange Street East);
„	L	(Boundary lines on the site of Sessions House and Exchange Street West);
„	LI	(Compensation for light abstracted from buildings of Corporation);
„	LIX	(Company to maintain the Exchange area);
„	LX	(Piazzas);
„	LXI	(Company to pave passages to neighbouring streets);
„	LXVII	(Reserved fund &c. of company of proprietors);
„	LXVIII	(Liverpool Exchange Company not bound by trusts);
„	LXIX	(Payment into court by Liverpool Exchange Company);
„	LXX	(Committee of company of proprietors continued in office for winding-up their affairs);
„	LXXI	(Final dissolution of Liverpool Exchange Company);
„	LXXVIII	(Expenses of Act).

A.D. 1937. The Act of 1864—

- Section 2 (Rectification of boundary line against Tithebarn Street and Chapel Street);
- „ 3 (Rectification of boundary line against Rumford Street);
- „ 4 (Rectification of boundary line against South Chapel Street);
- „ 5 (Rectification of boundary line of Exchange Street East);
- „ 8 (Rectification of boundary line of the Southern Passage);
- „ 9 (Sites for arcades to be determined and shown on plan);
- „ 10 (Authentication of plan);
- „ 11 (Deposit of plan);
- „ 12 (Company to erect arcades);
- „ 13 (As to erection of buildings over centre of arcade);
- „ 14 (Power to Company to project towers on Exchange area);
- „ 15 (Temporary building for stockbrokers and telegraph company);
- „ 16 (Removal of temporary building);
- „ 17 (Construction of vaults and cellars);
- „ 28 (Expenses of Act).

The Act of 1930—

- Section 33 (Power to improve buildings and to erect new buildings);
- „ 40 (Repeal);
- „ 41 (Costs of Act).

PART II.

PROVISIONS REPEALED ON THE DISSOLUTION OF THE
COMPANY.

The Act of 1859—

- Section III (8 & 9 Vict. cc. 16 & 18 incorporated and construction of certain terms);
- „ IV (Incorporation of Company);
- „ V (Liability of Company continued);
- „ VI (Company to continue entitled to property);
- „ VII (Conveyances &c. to remain in force);
- „ VIII (Actions &c. not to abate);
- „ IX (Debt due to and by the Company to be paid to and by them);
- „ X (Books &c. to be evidence);
- „ XI (Certificates &c. to remain in force);

[1 EDW. 8. & *Liverpool Exchange* [Ch. xiv.]
1 GEO. 6.] *Act, 1937.*

The Act of 1859—*cont.*

A.D. 1937.

Section	XII	(Byelaws &c. to remain in force);
„	XIII	(Officers to continue);
„	XIV	(Capital);
„	XV	(Shares already allotted to be held by same persons and on same trusts);
„	XVI	(Power to increase capital by creation of new shares);
„	XVII	(Appropriation of new shares);
„	XVIII	(No preference shares);
„	XIX	(Company may cancel unissued shares);
„	XX	(Calls);
„	XXIII	(Company not bound to see to the execution of trusts);
„	XXIV	(Power to create a reserved fund);
„	XXVIII	(Manner of voting);
„	XXIX	(First directors);
„	XXX	(Power to remove a director);
„	XXXIII	(Quorum of directors);
„	XXXIV	(Annual report on works and buildings);
„	XXXVII	(Report from auditors);
„	XXXVIII	(Notice of dividend);
„	XXXIX	(Deductions from dividends);
„	XLVI	(Receipts of guardians &c. to be sufficient discharges).

The Schedule.

The Act of 1864—

Section 24	(Investment of Company's monies);
„ 25	(Purchase by Company of shares of their capital);
„ 26	(Company to pay off debt in proportion to capital extinguished).

The Act of 1930—

Section 2	(Incorporation of Acts);
„ 4	(Sub-division of shares in issued capital);
„ 5	(Converted shares to confer like rights as existing shares);
„ 6	(Shares to be held on same trusts &c.);
„ 7	(Provisions as to exchange of certificates);
„ 8	(As to transfers);
„ 9	(Power to borrow);
„ 10	(Debenture stock);
„ 11	(Priority of mortgages and debenture stock over other debts);
„ 12	(Priority of principal moneys secured by existing mortgages);
„ 13	(Appointment of receiver);
„ 14	(Meetings of Company);

A D. 1937. The Act of 1930—*cont.*

- Section 15 (Notices of meetings);
„ 16 (As to appointment of proxies);
„ 17 (Joint holders);
„ 18 (Quorum for a general meeting);
„ 19 (Prescribed scale of voting);
„ 20 (Votes at meetings);
„ 21 (Interim dividends and annual accounts);
„ 22 (Closing of transfer books);
„ 23 (Number of directors);
„ 24 (Qualification of directors);
„ 25 (As to appointment of managing director);
„ 26 (Directors holding office under or contracting
with Company);
„ 27 (Notice of candidature of or of opposition to
re-election of director);
„ 28 (Register of shareholders and shareholders' address
book);
„ 29 (Auditors);
„ 30 (Power to make superannuation and other
allowances);
„ 31 (Power to directors to make donations sub-
scriptions &c.);
„ 32 (Secretary's remuneration);
„ 39 (Amendment of section XXIII of Act of 1859).

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